

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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TANIECE CARTHEN-MELVIN,

Plaintiff designates Kings
County as the place of trial

Plaintiff,

SUMMONS

-against-

Basis of the venue is Locus of
Occurrence

THE CITY OF NEW YORK, POLICE OFFICER
RODNEY K. HALE-Shield # 24629, POLICE OFFICER
ROBERT HUNTER-Shield # 21769, POLICE OFFICER
BERMALY NUNEZ-Shield # 13724 and JOHN AND
JANE DOES-Police Officers as yet unidentified,

Locus of Occurrence
79th Police Precinct
263 Tompkins Avenue
Brooklyn, New York 11216

Defendants.

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County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

POLICE OFFICER RODNEY K. HALE-Shield
24629
Tax ID # 933826
c/o 79th Police Precinct
263 Tompkins Avenue
Brooklyn, New York 11216

POLICE OFFICER ROBERT HUNTER-Shield
21769
Tax ID # 21769
c/o 79th Police Precinct
263 Tompkins Avenue
Brooklyn, New York 11216

Defendant's address:

POLICE OFFICER BERMALY NUNEZ-Shield

13724

Tax ID # 13724

c/o 79th Police Precinct

263 Tompkins Avenue

Brooklyn, New York 11216

Dated: Brooklyn, New York
November 8, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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TANIECE CARTHEN-MELVIN,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
 RODNEY K. HALE-Shield # 24629, POLICE OFFICER
 ROBERT HUNTER-Shield # 21769, POLICE OFFICER
 BERMALY NUNEZ-Shield # 13724 and JOHN AND
 JANE DOES-Police Officers as yet unidentified,

Defendants.

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Plaintiff, by her attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
 defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
 follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
 AND BATTERY ON BEHALF OF TANIECE CARTHEN-MELVIN**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on March 4, 2024, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on June 12, 2024.

6. That on December 18, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on December 18, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, TANIECE CARTHEN-MELVIN, was lawfully at or about the premises known as the 79th Police Precinct, located at 263 Tompkins Avenue, specifically on the main floor thereat, in the County of Kings, City and State of New York.

8. That on December 18, 2023, and at all times thereafter mentioned and on information and belief, the plaintiff visited the 79th Police Precinct upon discovering that her spouse had been arrested. While at the precinct, the plaintiff communicated with an officer at the front desk regarding the purpose of her visit. She inquired about her spouse's property, which had been confiscated or retained by police officers following her spouse's arrest and while in their custody. When asked about the location of her spouse, a police officer at the front desk stated that her spouse was not at the precinct. After contacting her spouse by phone, the plaintiff noticed the ringtone, indicating he had been present all along. The plaintiff made another attempt to take possession of her spouse's property, while also inquiring about his arrest. The defendants, POLICE OFFICER ROBERT HUNTER-Shield # 21769, and JOHN AND JANE DOES-Police Officers as yet unidentified confronted the plaintiff, particularly POLICE OFFICER BERMALY NUNEZ-Shield # 13724, who instructed the plaintiff to leave the premises, stating that she was "sick of her mouth". The plaintiff declined to vacate the premises and insisted on receiving clarification regarding the retention of her spouse. Following this, the plaintiff was approached and was assaulted and battered by the defendant, POLICE OFFICER RODNEY K. HALE-Shield # 24629. The assault and battery consisted of being grabbed by the hood of the plaintiff's coat and

then striking her in the face. The plaintiff was forcibly pulled and pushed backward down a flight of steps by the defendant police officers. Throughout the incident, the defendant, POLICE OFFICER RODNEY K. HALE-Shield # 24629, engaged in the use of offensive and threatening language by indicating an intention to shoot two (2) bullets into the plaintiff's head and twelve (12) bullets into her mother's head. This occurred in the presence of defendant police officers at the precinct.

9. That on December 18, 2023, and at all times hereinafter mentioned and upon information and belief, plaintiff, TANIECE CARTHEN-MELVIN, was assaulted and battered by defendants, POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on December 18, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on December 18, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, TANIECE CARTHEN-MELVIN, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on December 18, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental

shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, TANIECE CARTHEN-MELVIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF TANIECE CARTHEN-MELVIN**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, TANIECE CARTHEN-MELVIN.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, TANIECE CARTHEN-MELVIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL
DISTRESS ON BEHALF OF TANIECE CARTHEN-MELVIN**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

21. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, TANIECE CARTHEN-MELVIN.

22. That as a result of said intentional and negligent acts, the plaintiff, TANIECE CARTHEN-MELVIN, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

23. By reason of the foregoing, the plaintiff, TANIECE CARTHEN-MELVIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF TANIECE CARTHEN-MELVIN**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, TANIECE CARTHEN-MELVIN.

26. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

27. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

28. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

29. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

30. As a direct and proximate result of this unlawful conduct, the plaintiff, TANIECE CARTHEN-MELVIN, sustained the damages hereinbefore alleged.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF TANIECE CARTHEN-MELVIN**

31. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

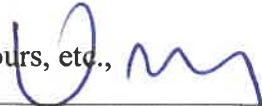
33. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER RODNEY K. HALE-Shield # 24629, POLICE OFFICER ROBERT HUNTER-Shield # 21769, POLICE OFFICER BERMALY NUNEZ-Shield # 13724 and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

34. By the reason of the foregoing, the plaintiff, TANIECE CARTHEN-MELVIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, TANIECE CARTHEN-MELVIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, TANIECE CARTHEN-MELVIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, TANIECE CARTHEN-MELVIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, TANIECE CARTHEN-MELVIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, TANIECE CARTHEN-MELVIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; together

with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
November 8, 2024

Yours, etc., 

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
TANIECE CARTHEN-MELVIN
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23TC12-18

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

TANIECE CARTHEN-MELVIN, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


TANIECE CARTHEN-MELVIN

Sworn to before me this 13th
day of November 2024


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MAG158891
Qualified in Richmond County
Commission Expires 1-16-2027